

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

JOINT MOTION FOR ENTRY OF PROTECTIVE ORDER

Complainant and Respondent, by and through the undersigned counsel, jointly move pursuant to Rule 46 C.F.R. § 502.141(j) of the Commission's Rules of Practice and Procedure, for entry of a protective order in connection with the above-captioned proceeding. Issuance of a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive. A proposed protective order is attached for consideration by the Presiding Officer.

The parties have jointly drafted and agreed to the terms of the Protective Order attached hereto and request that the Presiding Officer grant this Joint Motion for Entry of Protective Order.

STIPULATION AND ORDER OF CONFIDENTIALITY

The undersigned parties (each a "Party," and collectively, the "Parties"), by their counsel, hereby stipulate and agree that in connection with this litigation, if there is an occasion to disclose information deemed by any Party to constitute confidential or proprietary information, the following procedures shall be employed and the following restrictions shall govern:

1. Any testimony, information, documents, or things, including without limitation, interrogatories, answers to interrogatories, deposition transcripts, responses to requests for production, and responses to requests for admission (collectively, "Discovery Material"), which any Party reasonably believes is confidential or proprietary or contains confidential or proprietary information as described more fully in Paragraph 2 (hereinafter "Confidential Material"), may be marked or otherwise designated as "CONFIDENTIAL" or "Attorneys Eyes Only" as more fully described herein.

2. Each Party may designate, by marking "CONFIDENTIAL," any Confidential Material which, in the good faith and judgment of such Party, contains trade secrets, special formulas, company security matters, customer lists, vendor lists, financial data, projected sales data, production data and activity, gate and vessel activity, inventory statistics, matters relating to mergers and acquisitions, and data which touch upon the topic of price, provided such documents have not previously been disclosed by the producing Party to any third party or any person not under an expectation of confidentiality or contains information that should otherwise be subject to confidential treatment. If the producing Party designates Discovery Material as "CONFIDENTIAL" after copies thereof have been delivered to the receiving Party, the undesignated delivered copies thereafter shall be treated as if they were so designated.

3. A party (or producing non-party) may designate as Attorneys Eyes Only (“AEO”) any information or material whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the producing party or non-party’s competitive business interests or the competitive or privacy interests of the producing party or non-party’s suppliers, service providers, customers or clients, or of an individual party in this proceeding. AEO material subject to this Order shall be used solely for purposes of this litigation in accordance with provisions of this Order.

4. A Party may designate information disclosed at any deposition taken in this action as Confidential Material by notifying all Parties in writing within fifteen (15) days of receipt of the transcript of the specific pages and lines of the transcript, or the specific deposition exhibits, which are Confidential Material. Each Party shall attach a copy of such written statement to the face of the transcript and each copy thereof in their possession, custody, or control. The entire content of any deposition transcript shall be treated as Confidential Material for a period of fifteen (15) days after a full and complete transcript of said deposition is available, regardless of whether any Party has so designated the transcript.

5. Confidential Material marked CONFIDENTIAL shall be disclosed only to:

- (a) the Administrative Law Judge assigned to this case ("ALJ"), the Federal Maritime Commission (the "Commission"), and personnel of the Commission involved in connection with this matter;
- (b) outside counsel for the Parties (including partners and associates), agents, paralegals, and support staff of said counsel who are acting in connection with the prosecution or defense of this action, and outside document copying services and/or

document coding or computerization services retained by such counsel or the Parties in connection with this action;

(c) non-party consultants or experts engaged by counsel or the Parties for any Party in connection with the prosecution or defense of this action (“Experts”) and any actual or proposed non-party witnesses, subject to Paragraph 5 hereof;

(d) the Parties, including but not limited to their officers, directors, and employees with a need for access to such Confidential Material; and

(e) court reporters engaged in connection with depositions or other testimony in this action.

6. Except with the prior written consent of the producing party or non-party or with prior order of the Presiding Officer, Confidential Material marked “Attorneys Eyes Only” and any information derived therefrom may only be disclosed to:

(a) counsel for the parties, including in-house counsel, and their legal, paralegal and clerical staff and printing, copying, and electronic discovery vendors;

(b) any officers before whom any deposition in this action is taken, including stenographic reporters, videographers, and any necessary secretarial, clerical, or other personnel of such officers engaged for the preparation of verbatim transcripts and/or recordings in this proceeding;

(c) any person(s) who created or previously received the AEO material;

(d) employees of the Federal Maritime Commission (the “Commission”); and

- (e) non-party consultants or experts engaged by either Party or their counsel in connection with the prosecution or defense of this action (“Experts”) and non-party deposition or trial witnesses, subject to Paragraph 6 hereof.

7. Confidential Material shall be disclosed to Experts only after such Expert agrees in writing, in the form annexed hereto as "Exhibit A," to be bound by the terms of this Stipulation and Order of Confidentiality (“Protective Order”). The attorneys for the Parties shall maintain a file of such written agreements. In the event a Party serves subpoenas on non-parties, a copy of this Protective Order (including Exhibit A) shall be included with the subpoena. Each non-party witness who is permitted to see Confidential Material shall first be shown a copy of this Protective Order and shall further be advised of the obligation to honor the confidential designations.

8. All Confidential Material which is to be filed with the Commission, or materials containing, reproducing, or incorporating Confidential Material shall be filed and labeled in accordance with 46 CFR §502.5.

9. If at any time a Party objects to a designation of Confidential Material as "CONFIDENTIAL" or “Attorneys Eyes Only,” the objecting Party shall notify the designating Party in writing. The notice shall identify the material or information in question and set forth in reasonable detail why the Party contends that the material is not entitled to "CONFIDENTIAL" or “Attorneys Eyes Only” treatment. If the matter cannot be resolved after good faith negotiations, either Party may apply by motion to the ALJ for a determination as to whether the designation is appropriate. The Discovery Material or information shall be treated as "CONFIDENTIAL" or “Attorneys Eyes Only” until the ALJ rules otherwise upon such motion. The foregoing shall not preclude the use of Confidential Material by any Party in a deposition, motions, briefing, or at trial if, at such time, the ALJ has not ruled on a then-pending application regarding a Party’s

confidentiality designation, and insofar as such use otherwise complies with treatment of Confidential Material for such use (e.g., treatment of deposition transcripts as confidential for the relevant period set forth herein, and submission of redacted and non-public versions of filings pursuant to the FMC Rules).

10. This Protective Order applies equally to Discovery Material obtained by or produced in response to any subpoena, including in particular, Discovery Material produced by non-parties. A Party may designate documents and information produced to all Parties by non-parties as CONFIDENTIAL. To allow the Parties an opportunity to designate documents produced by non-parties as CONFIDENTIAL under the terms of this Stipulation, all documents and information produced to all Parties by a non-party shall be treated by the Parties as if designated CONFIDENTIAL under this Stipulation for ten (10) days after receipt. Within ten (10) days after receipt of the non-party documents and information, a designating Party may produce to all other Parties a copy of the non-party documents to be designated that are marked with the words "CONFIDENTIAL" on the document in a manner that will not interfere with the legibility of the document and that will permit complete removal of the CONFIDENTIAL designation. Thereafter, those documents so marked or designated shall be protected as CONFIDENTIAL subject to the objection procedures set forth above. If the volume of material produced by a third-party is such that 10 days is not a reasonable amount of time for such review, a Party may request an additional 10-day period for review, which shall not be automatically granted.

11. If at any time prior to a hearing in this proceeding, a producing Party realizes that some portion of Discovery Material that such Party previously produced without limitation should be designated as Confidential Material, the producing Party may so designate that portion by promptly notifying all Parties in writing. Such designated portion of the Discovery Material will

thereafter be treated as “CONFIDENTIAL” under the terms of this Protective Order. In addition, the producing Party shall provide each other Party with replacement versions of such Discovery Material that bears the appropriate “CONFIDENTIAL” designation within five (5) business days of providing such notice.

12. If, in connection with this proceeding, and despite having taken reasonable steps to prevent the disclosure of information that it contends is subject to a claim of attorney-client privilege or attorney work product, a producing Party inadvertently discloses information subject to a claim of attorney-client privilege or attorney work product protection (“Inadvertently Disclosed Information”), such disclosure, in itself, shall not constitute or be deemed a waiver or forfeiture of any claim of privilege or work product protection with respect to the Inadvertently Disclosed Information and its subject matter. If a disclosing Party makes a claim of inadvertent disclosure, all receiving Parties shall, within five (5) business days, return or destroy all copies of the Inadvertently Disclosed Information, and provide a certification of counsel that all such information has been returned or destroyed. Within five (5) business days of the notification that such Inadvertently Disclosed Information has been returned or destroyed, the disclosing Party shall produce a privilege log with respect to the Inadvertently Disclosed Information. If a receiving Party thereafter moves the Presiding Officer for an order compelling production of the Inadvertently Disclosed Information, that motion shall be filed and labeled in accordance with 46 CFR §502.5, and shall not assert as a ground for entering such an order the mere fact of the inadvertent production. The disclosing Party retains the burden of establishing the privileged or protected nature of any Inadvertently Disclosed Information. Nothing in this Protective Order shall limit the right of any Party to request an *in camera* review of the Inadvertently Disclosed Information.

13. All Confidential Material shall be used only by authorized persons as defined in this Stipulation and only for the prosecution or defense of this action and not for any business or other purpose whatsoever.

14. Nothing herein shall preclude a Party from using or disclosing for any purpose any Confidential Material that such Party itself produced.

15. The provisions of this Stipulation insofar as they restrict the communication and use of Discovery Material and information designated as "CONFIDENTIAL" or "Attorneys Eyes Only" shall continue to be binding after the conclusion of this action, unless otherwise permitted by written agreement of the producing Party or further order of the ALJ or by a competent juridical body.

16. The Parties have agreed to the entry of this Stipulation as a Protective Order to facilitate and expedite discovery; nothing contained herein shall prevent any Party from seeking modification of this Stipulation or resulting Protective Order or from objecting to discovery which it believes to be otherwise improper.

17. The Parties acknowledge that the mere fact that documents or information are designated as "CONFIDENTIAL" by the producing Party creates no presumption that: (a) the documents or information so designated have been rightfully designated as such; (b) the producing Party has any proprietary or protectable interest in said documents or information; or (c) the producing Party is rightfully in possession of or has rightfully received said documents or information.

18. The Parties further acknowledge that the receiving Party's failure to file or delay in filing a petition challenging the designation of documents or information as "CONFIDENTIAL" shall create no presumption that: (a) the documents or information were rightfully so designated;

(b) the producing Party has any proprietary or protectable interest in said documents or information; or (c) the producing Party is in rightful possession of or has rightfully received said documents or information.

19. Nothing contained herein constitutes or should be construed as a waiver by any Party of the attorney-client privilege or work-product doctrine.

20. Within sixty (60) days after final termination of this proceeding, either by expiration of the time to appeal or after issuance of the appellate mandate after an appeal, each Party shall assemble and return to the other Party all Confidential Material designated "CONFIDENTIAL" or "Attorneys Eyes Only" including all copies thereof; or shall certify to counsel for the other Party that all Confidential Material and copies of same, including copies provided under any executed Confidentiality Agreement (Exhibit A), have been destroyed.

Dated: September 26, 2025

STIPULATED AND AGREED TO:

MILLS BLACK LLP

By: /s/ **Peter F. Black**

Peter F. Black
H. Allen Black
Imran O. Shaukat
1215 19th Street NW,
Washington, D.C. 20036
Telephone: (202) 987-4100
Email: pblack@millsblack.com
Email: hallenblack@millsblack.com
Email: ishaukat@millsblack.com

*Counsel to Complainant, Samsung
Electronics America, Inc.*

COZEN O'CONNOR, P.C.

By: /s/ **Christopher Raleigh**

Wayne R. Rohde
Christopher Raleigh
Kathryn Sobotta
Rachel Schwartz
2001 M Street Northwest, Floor 5
Washington, DC 20036
Telephone: 202-463-2507
Facsimile: 202-640-5912
Email: wrohde@cozen.com
Email: craleigh@cozen.com
Email: ksobotta@cozen.com
Email: rschwartz@cozen.com

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

**JEFFREY/FENNEMAN LAW +
STRATEGY, PLLC**

By: /s/ **Rebecca A. Fenneman**

Rebecca A. Fenneman
Kaya C. Massey
Nicholas L. Webb
700 12th Street, NW Suite 700
Washington, DC 20005
Email: RFenneman@JeffreyFenneman.com
Email: KMassey@JeffreyFenneman.com
Email: NWebb@JeffreyFenneman.com

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

SO ORDERED:
